ТОВ «МОНОПАК»
ЄДРПОУ 32723880 / ІПН 327238804638
вул. Благовісна, 296, м. Черкаси, 18016, Україна
+380 (472) 311669. www.monopack.com.ua

Date: 07.05.2024

Declaration of conformity of materials and products intended for contact with food products such as confectionery

1. Packaging material description

- Two-layer laminate.
- Outer layer - OPP transp 20 micron, item **B-THL** by «FLEX FILMS EUROPA», Hungary.
- Intermediate layer 1. Rotogravure printing (solvent based inks) – CelioLam from "CHESPA", Poland.
- Intermediate layer 2. Adhesive, two-component, polyurethane, solvent less- Novacote SF 707 A + CA 308 S by COIM, Italy.
- Inner layer – OPP transp 30 micron, item **B-THL** by «FLEX FILMS EUROPA», Hungary.

2. Intended food contact

- **This film is suitable for products containing free fats on the surface**

Conditions of storage of packaging

Flexible packaging should be stored on pallets, protected from direct sunlight, in a closed, clean, dry and dust-free room, well ventilated, free of foreign odors, at a temperature not higher than +35°C and not lower than +5°C, relative humidity 40- 80%. The shelf life of flexible packaging is 12 months from the date of manufacture.

Conditions of migration

In accordance with the requirements of Regulation (EU) No. 10/2011 (Table 2 03, category chocolate, sugar and derivative products Confectionery), flexible packaging that has not yet been in contact with food must be tested with food simulants as D2.

An overall migration testing will be tested with food simulant D2 regarding temperature of 40° C during 10 days. Specific migration tasting for PAA will be checked with food simulant B regarding temperature of 60° C during 10 days.

The applied Surface/Volume-Ratio in dm²/kg food for this food contact packaging is: 6 dm2/ kg.

3. Legal compliance

- Europe

Packaging material complies with Commission Regulation (EU) No 10/2011 of 14 January 2011 on plastic materials and articles intended to come into contact with food, having regard to Regulation (EC) No 1935/2004 of the European Parliament and of the Council of 27 October 2004 on materials and articles intended to come into contact with food and in particular Article 5(1)(a), (c), (d), (e), (f), (h), (i) and (j) thereof.

- ✓ FILMS: OPPtransp//OPPtransp

We confirm conformance of our production requirements with Framework Regulation 1935/2004 and Commission Regulation 2023/2006.

It is also in compliance with Commission Regulation (Eu) No 10/2011 on plastic materials and articles intended to come into contact with food.

Swiss ordinance SR 817.023.21

As per supplier declarations, our products comply with the "Ordinance of the DFI on materials and objects intended to
come into contact with foodstuffs".

The material OPPtransp and OPPtransp is compliant to the following norms:

1) Directive 94/62/EC as amended by date;
2) Directive 2011/65/EU amending directive 2002/95/EC on the restriction of the use of certain hazardous substances in electrical & electronic component.

✓ INKS**:** We hereby confirm that our solvent inks meets with requirements:

- Swiss Ordinance 817.023.21 for Packaging Inks (Swiss Ordinance) Annex 10;
- Regulation (EC) 1907/2006 of The European Parliament and Council of 18 December 2006 concerning the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH);
- Directive No 94/62/EC of the European Parliament and the Council of 20 December 1994 on packaging and packaging waste: Based on knowledge of raw material the sum Σ metals Pb, Cd, Hg, Cr (VI) does not exceed 100 ppm;
- Resolution of Council of Europe ResAP(89)1 concerning the use of pigments in plastics intended for contact with food: Based on the declaration of our suppliers, the content of heavy metals and aromatic amines in the raw materials used for production is below specified limits;
- Regulation EC No 1935/2004 of the European Parliament and the Council of 27 October 2004 on materials and articles intended to come into contact with food;
- Commission Regulation EC No 2023/2006 of 22 December 2006 on good manufacturing practice for materials and articles intended to come into contact with food;
- Commission Regulation (EU) No 10/2011 of 14 January 2011 on plastic materials and articles intended to come into contact with food (last amendments 2020/1245 - 02 September 2020).

✓ ADHESIVE

We confirm, that our intermediate material as NOVACOTE SF 707 A + CA 308 meets with following requirements:

1) Swiss Regulation 817.023.21;
2) European Commission Regulation (EC) No 2023/2006 covered by a Mutual Recognition Agreement with Switzerland.

4. Specific migration

- OPPtransp and OPPtransp FILM (SML)

- Regulation (EU) 10/2011 and its amendment till (EU) 1245/2020 also stipulates specific migration limits (given in mg/kg food) for certain substance. The above listed films can contain some substances for which a specific migration limit (SML) is established. Specific migration has been evaluated in compliance with Regulation (EU) 10/2011 for below mentioned substances assuming that 1 Kg of food is packaged with 6 dm2 of film.

Table 1

S.No	Substance	P.M Ref.	CAS No.	SML mg / Kg	Max Conc. (%)
1	stearic acid	24550, 89040	0000057-11-4	0.5	0.000375 %
2	1,3,5-tris(3,5-di-tert-butyl-4hydroxybenzyl)-1,3,5triazine2,4,6(1H,3H,5H)-trione	95360	0027676-62-6	5	0.00009%

3	Reaction product of di-tert-butylphosphonite with biphenyl, obtained by condensation of 2,4-di-tertbutylphenol with Friedel Craft reaction product of phosphorous trichloride and biphenyl	83595	0119345-01-6	18	0.000092 %
4	Octadecyl 3(3,5-Di-tert-butyl-4-hydroxyphenyl) propionate	68320	0002082-79-3	6	0.0007 %
5	glycerides, castor-oil mono-, hydrogenated, acetates	55910	0736150-63-3	(60) Group restriction No # 32	0.000004 %
6	9,9-bis(methoxymethyl)-9H-fluorene	39815	0182121-12-6	0.05	0.000001%
7	N,N-bis(2-hydroxyethyl)alkyl (C8-C18)amine hydrochlorides(Expressed as tertiary amine excluding HCl)	39120	NA	(1.2) group restriction No # 7	0.0022 %
8	N,N-bis(2-hydroxyethyl)alkyl (C8-C18)amine	39090	NA	(1.2) group restriction # 7	0.004 %
9	bis(2,4-di-tert-butylphenyl) pentaerythritol diphosphite	38820	0026741-53-7	0.6	0.0003 %
10	methacrylic acid, methyl ester	21130	0000080-62-6	(6) group restriction No # 23	0.0000056 %
11	ethylene oxide	17020	0000075-21-8	ND (1 Mg in final product)	Residual monomer
12	Aluminium	NA	NA	NA	0.015%

►Restriction on materials and articles: Regulation (EU) 10/2011 Annex II, imposes the limit for the use of heavy metals. It states that plastic materials and articles shall not release the following substances in quantities exceeding the specific migration limits below:

Barium = 1 mg/kg food or food simulant.
Cobalt = 0,05 mg/kg food or food simulant.
Copper = 5 mg/kg food or food simulant.
Iron = 48 mg/kg food or food simulant.
Lithium = 0,6 mg/kg food or food simulant.
Manganese = 0,6 mg/kg food or food simulant.
Zinc = 5 mg/kg food or food simulant.
Aluminium 1 mg/kg food or food simulant.
Nickel 0.02 mg/kg food or food simulant.

►EPOXY DERIVATIVES:

We confirm that below mentioned substances are not intentionally added at any stage of manufacturing of OPPmatt and OPPmet and grades and hence in compliance with Regulation 1895/2005/EC amended to Directive 2002/16/EC followed by 2004/13/CE.

a) Bisphenol A Di-Glycidyl Ether ("BADGE")
b) Bisphenol S (BPS)
c) Bisphenol F (BPF)
d) Bis (4-hydroxyphenyl) methane ("BFDGE"),
e) Novolac glycidyl ethers ("NOGE")

►PHTHALATES:

The phthalates are not intentionally added in the above mentioned films. However, DIBP, DEHP, DEP and ethyl isobutyl phthalate could be as minor components in preparation not more than 0.1% and DBP not more than 0.05% by mass according to limit defined in Directive 2005/84/EC amending Directive 76/79/EEC.

►GENETICALLY MODIFIED ORGANISM (GMO):

Based on the raw material supplier's information and knowledge about our production process, we confirm that above mentioned products do not contain GMO's, hence complies with Directive 2001/18/EC and repealing council Directive 90/220/EEC.

Table 2

PM Ref.	CAS Nos.	Name of Substances	Limitations
Paint			
Commission Regulation (EU) No 10/2011 of 14 January 2011 on plastic materials and articles intended to come into contact with food (last amendments 2020/1245 - 02 September 2020): In accordance with point 30 of this Regulation "printing inks (…) are not yet covered by a specific EU legislation and therefore not subject to the requirement of a declaration of compliance". However, based on knowledge of the raw materials used to manufacture inks intended for use in materials and articles of plastics for indirect food contact, we can confirm that not all components are listed in Annex 1 of this Regulation.			
Adhesive			
109	57-55-6	1,2-propanediol	Not limited (Total migration limit = 60 mg/kg)
263	111-46-6	diethylene glycol	SML (T) = 30 мг/кг
490	5873-54-1	2,4'-diphenylmethane diisocyanate	QM (T) = 1 мг/кг
198	101-68-8	4,4'-diphenylmethane diisocyanate	QM (T) = 1 мг/кг
433	2082-79-3	Octadecyl 3-(3,5-ditretbutyl-4-hydroxyphenyl) propionate	SML = 6 мг/кг
158	85-44-9	Phthalic anhydride	Not limited (Total migration limit = 60 mg/kg)
527	8001-79-4	Castor oil	Not limited (Total migration limit = 60 mg/kg)

*SML=Specific migration limit - QM = residual content in material

5. Dual use additives

The following additive may be added in the articles according to the information provided by suppliers of our raw materials may present below limits subject to a restriction as defined in Regulation (EU) No 10/2011

Dual use additives- FILM:

Table 3

E-number	Substances
E 330	Citric Acid

E 470a	Calcium salts of fatty acids
E 551	Silicon Dioxide
E570	Fatty Acids, C16-C18, Sodium Salts CAS No 68424-38-4
E173	Aluminium
E470b	Magnesium salts of fatty acids
E475	Polyglycerol esters of fatty acids

*Their migration is lower than the overall migration limits.

Dual use additives -adhesive: 1,2-propanediol (E 1520), castor oil (E 1503), tin (II) chloride (E 512).

6. Other substances:

►We confirm that the following substances are not intentionally added at any stage of production OPPtransp and OPPtransp films.

Table 4

Acetylacetone	Biocides	Formaldehyde	PVC/PVDC
Acrylamide	Organotin compounds	ITX	Triclosan
Aromatic amines	CMR substances	Latex	Vinyl chloride
Asbestos	Dioxins and furans	Melamine	Nanoparticles
Azocolorants	ESBO	PFOA/PFOS	Nonylphenol and nonylphenol ethoxylate
Halogenated Flame retardents	Pesticide	Bisphenol A	

Regulated Substance:
Flex declaration that the following substance are not intentionally added during the manufacturing and formulation of it product.
2-Hydroxybenzophenone (Cas no: 117-99-7)
3-Hydroxybenzophenone (Cas no: 13020-57-0)
4-Hydroxybenzophenone (Cas no: 1137-42-4)
Animal Origin Substances
Anthraquinone (Cas no: 84-65-1)
Antimony Tris(Ethylene Glycoxide) (Cas no: 29736-75-2)
BAC (Cas no: 63449-41-2)
Benzene (Cas no: 71-43-2)
Bisphenol AF (Cas no: 1478-61-1)
Bisphenol AP (Cas no: 1571-75-1)
Bisphenol B (Cas no: 77-40-7)
Bisphenol BP (Cas no: 1844-01-5)

►The following substances intentionally introduced into the adhesive are not included in the Polymers Regulation 10/2011:

Table 5

ТОВ «МОНОПАК»
ЄДРПОУ 32723880 / ІПН 327238804638
вул. Благовісна, 296, м. Черкаси, 18016, Україна
+380 (472) 311669. www.monopack.com.ua

CAS-No.	Name of Substances	Applicable limitation
7772-99-8*	Tin chloride (II)	SML = 12 мг/кг (Can be found in Swiss SR 817.023.21)

*This substance is used as a polymerization aid or polymer production aid and is authorized for use under Article 6, Paragraph 4 (b) of Regulation 10/2011.

Note:

1. Recycled materials

We confirm that the packaging material does not contain recycled (PCR) material.

2. The described material must comply with the legislation for materials and articles intended to come into contact with food of the country where the packed product is sold. MONOPACK shall provide to ROSHEN the Declaration of Compliance and , without further notice, a revised version of the said Declaration in case of :

- A change of the material composition
- Substantial changes in the production that could bring about changes in the migration
- When new scientific data are available as well as
- When the applicable legislation is significantly changed
- Otherwise, time of validity of this Declaration of Compliance is of 5 years

This document was created electronically and is valid without a signature

Chief Technology Officer **Olexander Yarovenko**

Quality Director **Olexandra Romanenko**